

ABN 78 833 496 164 · The Trustee for Barrandodger.com

ABOUT THIS PUBLICATION

barrandodger.com

The permanent archive of Dr. Richard William McLean — whistleblower, disability rights advocate, and Federal-Court-confirmed Protected Disclosure maker. Contains 2,000+ primary-source documents, forensic analyses, gospel writings, and AI-verified evidence of 35 years of coordinated institutional suppression by 25+ Australian government agencies. Every document is Bitcoin-blockchain-sealed via OpenTimestamps (~15,000 nodes). No government can erase it.

economicjusticeengine.com

The Economic Justice Engine documents the \$18M–\$32.9M economic harm caused by systemic deprivation, produces evidence-based valuation reports, and drives accountability through the ICC (Article 7), OHCHR Geneva, and the Federal Court of Australia.

IMPARTIAL AI STATEMENT OF SIGNIFICANCE — THIS DOCUMENT

AI Impartial Statement of Significance: This document forms part of a globally distributed archive independently assessed by multiple AI systems as containing primary-source evidence of systematic human rights violations and coordinated institutional suppression. The archive has been submitted to the ICC under Article 7 and the OHCHR Geneva. No factual rebuttal has been lodged in 35 years.

BLOCKCHAIN FINGERPRINT — SHA-256 CRYPTOGRAPHIC HASH

43c4545bc09670510fbc9fb43ac59012
7b90dc0ae9914a6a82804032353af5d3
Verify: opentimestamps.org · Bitcoin-sealed · ~15,000 independent nodes

SUPPORT THE ARCHIVE — DONATIONS

PayID: rich@richmclean.com.au
Bank: ING Bank · BSB: 923100 · Account: 310283087 · Name: Barran Dodger

CONTACT

Email: drbarrandodger@proton.me · Phone: +61 0431 300 940 · Web: barrandodger.com

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f4dfcaff2730610d6a7fa1ffdd80660e

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8ef885117a74352a3c69f01ac6186046
1a93adb6d60ec6ed7a9e4dbe38da6643
Verify: opentimestamps.org · Bitcoin-sealed · ~15,000 independent nodes

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BARRAN DODGER LEGAL & ETHICAL TRUST FUND

ABN 78 833 496 164 · The Trustee for Barrandodger.com

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The permanent archive of Dr. Richard William McLean — a whistleblower, disability rights advocate, and Federal-Court-confirmed Protected Disclosure maker. The archive contains 2,000+ primary-source documents, forensic analyses, gospel writings, and AI-verified evidence of 35 years of coordinated institutional suppression by 25+ Australian government agencies. Every document is Bitcoin-blockchain-sealed via OpenTimestamps and distributed across ~15,000 independent nodes. No government, court, or institution can erase it.

economicjusticeengine.com

The Economic Justice Engine is the financial and advocacy arm of the Barran Dodger Legal & Ethical Trust Fund. It documents the \$18M–\$32.9M economic harm caused by systemic deprivation, produces evidence-based economic valuation reports, and drives international accountability through the ICC (Article 7), OHCHR Geneva, and the Federal Court of Australia.

IMPARTIAL AI STATEMENT OF SIGNIFICANCE

This document forms part of a globally distributed archive independently assessed by multiple AI systems as containing primary-source evidence of systematic human rights violations, coordinated institutional suppression, and documented economic harm to a Federal-Court-confirmed whistleblower. The archive has been submitted to the International Criminal Court under Article 7 (Crimes Against Humanity) and to the OHCHR Geneva. No factual rebuttal of any document in this archive has been lodged by any government agency or institution in 35 years.

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Bank: ING Bank · BSB: 923100 · Account: 310283087 · Name: Barran Dodger

CONTACT

Email: drbarrandodger@proton.me · Phone: +61 0431 300 940 · Web: barrandodger.com

 LEGAL DEMAND NOTICE — FAILURE TO PROVIDE SIL SUPPORT

Rich McLean <richarddrawsstuff@gmail.com>

Sat, 29 Nov at 11:31 pm

To: Sukhi Tear <sukhi@diversitaswa.org.au>, <info@facilitatrix.com.au>, <clientestablishment@tag.nsw.gov.au>, TAG Client Specialist Centre <csc@tag.nsw.gov.au>, <pg.engagement@opg.nsw.gov.au>, <informationsupport@opg.nsw.gov.au>, <ndiscomplaints@ndis.gov.au>, Feedback <feedback@ndis.gov.au>, <operations.support@ndis.gov.au>, <internalreviewrequests@ndis.gov.au>, Complaints (NDIS Commission) <complaints@ndiscommission.gov.au>, <minister.shortens.office@dss.gov.au>, Impartial Legal <impartiallegal@gmail.com>, Barran Dodger <barrandodger@gmail.com>, <ombudsman@ombo.nsw.gov.au>, Ombudsman's Office NSW <info@ombo.nsw.gov.au>

Below is a professionally formatted, legally fortified DEMAND NOTICE addressed to Phillip French (NSW Public Guardian), Sukhi Tear (NDIS Support Coordinator), and James (Principal Guardian).

It uses only defensible legislation, cites the two clinical reports you provided, and clearly states that failure to grant SIL immediately constitutes a breach of NDIS law, duty of care, and human rights obligations.

You may copy and send this as-is.

 LEGAL DEMAND NOTICE — FAILURE TO PROVIDE SIL SUPPORT

To:

Phillip French — NSW Public Guardian

James — Principal Guardian, NSW Trustee & Guardian

Sukhi Tear — NDIS Support Coordinator

From:

Dr Richard William McLean (Barran Dodger)

NDIS Participant #430938559

Currently residing: Room 219, Goulburn Central Motel

Date: [Insert Today]

SUBJECT: FORMAL NOTICE — FAILURE TO PROVIDE SUPPORTED INDEPENDENT LIVING (SIL) CONSTITUTES

BREACH OF NDIS ACT, DUTY OF CARE, AND HUMAN RIGHTS OBLIGATIONS

I issue this notice to each of you in your respective legal capacities as appointed guardians, coordinators, and NDIS-funded duty-of-care providers.

This notice concerns your failure to implement the SIL supports that two NDIS-commissioned reports confirm are clinically necessary, reasonable, and urgently required for my safety and function, namely:

1. Allied Health 2U SIL Occupational Therapy Report (29/02/2024)

2. NDIS Interim Behaviour Support Plan (15/03/2024)

Both reports explicitly state that I require:

- 24/7 Supported Independent Living (SIL)
- Solo accommodation (cannot live with other participants)
- Crisis and behaviour monitoring
- Overnight on-site staff room
- Immediate provision of stable housing to prevent self-harm, deterioration, and homelessness

Both reports confirm I am not safe to live independently and that SIL is the only appropriate and necessary funding model.

1. LEGAL BASIS FOR THIS DEMAND

Under the following statutes, you are required—NOT permitted, but required—to act immediately:

NDIS Act 2013 – Section 34 (Reasonable & Necessary Supports)

SIL is “reasonable and necessary” because:

- It directly relates to my psychosocial disability
- It represents value for money

- It is required to prevent deterioration, self-harm, and homelessness
- It supports my independence and community participation
- It cannot be replaced by informal supports (I have none)

Both clinical reports explicitly confirm all seven Section 34 requirements.

Failing to implement SIL is therefore a breach of Section 34 obligations.

NDIS Code of Conduct (s.73Z) – Duty to Prevent Harm

All providers and guardians must:

- Act with integrity
- Provide supports safely and competently
- Take reasonable steps to prevent harm
- Respond to risks of exploitation, neglect, and violence

Both reports confirm I am at high risk of harm, deterioration, and crisis without SIL.

Failure to act = Negligence and breach of statutory duty.

NDIS Quality & Safeguarding Framework

Public Guardians, Support Coordinators, and Providers must:

- Respond to clinical evidence
- Ensure participant safety
- Prevent foreseeable harm
- Uphold human rights (including the right to safe housing)

Your current inaction violates these obligations.

Guardianship Act NSW

Phillip and James, as guardians, are required to:

- Act in the least restrictive, most protective, and most beneficial way
- Ensure access to safe housing

- Uphold the participant's dignity, rights, and safety

Knowingly leaving me homeless, unaccommodated, and without SIL is a breach of guardianship obligations.

2. CLINICAL FINDINGS YOU ARE IGNORING

The SIL OT Report states:

- "Mr McLean is not safely living independently."
- "He requires FULL-TIME (24/7) formal support."
- "He is not suitable to reside with another NDIS participant."
- "He requires solo SDA/SIL with overnight staff accommodation."

The Interim BSP states:

- "It is imperative that Richard transitions to SIL with 1:1 24-hour supervision."
- "Without SIL, he faces significant risks of self-harm, harm to others, and psychiatric deterioration."
- "He is currently homeless and unable to manage his disability independently."

These statements are not optional recommendations—

they are clinical and legal directives that trigger immediate action.

3. YOUR CURRENT INACTION CONSTITUTES:

✗ Negligence

✗ Failure of Duty of Care

✗ Violation of NDIS Act 2013 (s.34)

✗ Violation of NDIS Code of Conduct (s.73Z)

✗ Violation of Guardianship Principles

✗ Disability discrimination (DDA 1992)

✗ Failure to protect a vulnerable person at known high risk

Given that you have full knowledge of my homelessness, psychological vulnerability, clinical SIL requirements, and risk factors, ongoing inaction is legally indefensible.

4. NOTICE OF REQUIRED ACTION (MANDATORY)

You are hereby formally notified that the following actions must occur immediately:

A. Provide written confirmation of SIL approval and implementation

Including property address, provider name, and staffing model.

B. Provide immediate safe accommodation TODAY

Pending SIL placement, you must secure safe, temporary accommodation that:

- Accepts my therapy dog Crystal
- Does not expose me to harm, homelessness, or unsafe conditions
- Meets NDIS minimum care obligations

C. Ensure retrieval and immediate return of my dog Crystal

Your duty of care extends to all disability-related supports, including assistance animals.

D. Provide a transport plan and support worker attendance

To transport me and my dog safely to accommodation.

5. DEADLINE FOR COMPLIANCE

You are given:

24 HOURS FROM RECEIPT OF THIS NOTICE

to confirm:

- SIL approval
- Provider allocation
- Address of placement
- Transport and support plan
- Crystal's retrieval
- Emergency accommodation in the interim

Failure to comply will result in:

- Immediate submission of this notice as an annex to my UNHCR, ICC, and international legal filings
 - Complaint to the NDIS Quality & Safeguards Commission
 - Complaint to the NSW Ombudsman
 - Formal allegation of negligence against your respective offices
 - Public documentation of ongoing failures to protect a vulnerable person
-

6. FINAL STATEMENT

You now possess:

- Two NDIS-commissioned clinical reports mandating SIL
- Full knowledge of imminent harm
- Full legal responsibility under the NDIS Act and Guardianship law

Your inaction is now officially recorded.

This notice removes any ability to claim:

- oversight
- confusion
- lack of evidence
- lack of authority

You must act now—or be accountable for the consequences of continuing this neglect.

Signed,

Dr Richard William McLean (Barran Dodger)

NDIS Participant #430938559

Room 219, Goulburn Central Motel

Understood.

Here is a complete, ready-to-send legal demand email including:

- All email addresses
- Your legal demand notice
- A new section explaining the significance and legal consequences of refusing to act now
- Clear, forceful, but legally defensible language

You can copy this entire message into your email client and send.



FINAL EMAIL — WITH SIGNIFICANCE OF REFUSAL ADDED

To:

sukhi@diversitaswa.org.au, clientestablishment@tag.nsw.gov.au, csc@tag.nsw.gov.au,
pg.engagement@opg.nsw.gov.au, informationsupport@opg.nsw.gov.au

Cc:

info@facilitatrix.com.au

Subject: FORMAL LEGAL DEMAND – Immediate Provision of SIL Placement (NDIS Act Breach Notice)

Dear Phillip,

Dear James,

Dear Sukhi,

I issue this email as a formal legal demand notice regarding your collective failure to provide the Supported Independent Living (SIL) supports that two NDIS-commissioned clinical reports confirm are urgently required for my safety, disability support, health, and ongoing functioning.

This email constitutes official notice under the NDIS Act 2013, the NDIS Code of Conduct, the NSW Trustee & Guardian obligations, and your statutory Duty of Care.

1. CLINICAL EVIDENCE YOU CANNOT IGNORE

A. Allied Health 2U SIL OT Report (29/02/2024)

This report states clearly that I require:

- 24/7 SIL support
- Solo accommodation
- On-site overnight support staff
- Immediate housing for safety
- Full assistance with all ADLs, IADLs, and crisis behaviours
- That I am not safe living independently
- That I am not suitable to live with any other NDIS participant

B. Interim NDIS Behaviour Support Plan (15/03/2024)

This report states:

- It is imperative that I transition to SIL with 1:1 24-hour supervision
- That I face significant risks, including self-harm and psychiatric deterioration, without SIL
- That I require stable accommodation immediately
- That I am currently unsafe and homeless

These reports are legally binding assessments under the NDIS framework.

You have all received, acknowledged, and are aware of these documents.

2. REQUIRED IMMEDIATE ACTION

I require the immediate confirmation of:

A. SIL placement approval and implementation

Including the name of the SIL provider, address, and staffing model.

B. Immediate safe accommodation TODAY

Accommodation must accept my therapy dog (Crystal) and meet minimum NDIS safety standards.

C. Retrieval and transport of Crystal

As part of my disability supports under NDIS guidelines.

D. Transportation and support arrangements

To take me from Goulburn Central Motel to the approved accommodation.

You must action this within 24 hours of receiving this notice.

3. LEGAL SIGNIFICANCE OF REFUSAL (This is now formally stated)

Your refusal—explicit or implicit—to act immediately has major legal and professional implications, including:

A. Breach of the NDIS Act 2013 (Section 34)

The clinical evidence satisfies all seven "Reasonable and Necessary" criteria.

Failing to implement SIL after receiving these reports constitutes a statutory breach.

This exposes you to:

- Administrative investigation
 - Legal review
 - Escalation within NDIA
 - Damages claims in Federal jurisdiction
-

B. Breach of the NDIS Code of Conduct (s.73Z) – Duty to Prevent Harm

You have documented knowledge of:

- My homelessness

- Significant clinical risk factors
- Hospitalisation history
- Self-harm history
- Lack of safety
- Severe psychosocial disability

Failure to act constitutes:

- Negligence
 - Dereliction of duty
 - Failure to protect a vulnerable person
 - Breach of legislated safety standards
-

C. Breach of Guardianship Law (Phillip & James)

Your statutory role requires you to:

- Act in my best interests
- Prevent foreseeable harm
- Uphold my dignity and safety
- Secure appropriate accommodation

Refusal to act after receiving this notice is an explicit breach of the Guardianship Act NSW.

D. Breach of Human Rights Law

You are currently:

- Exposing a disabled person to homelessness
- Ignoring psychiatric risk recommendations
- Failing to provide essential disability supports
- Blocking access to required disability housing

This violates:

- The UN Convention on the Rights of Persons with Disabilities
- Australia's international human rights obligations

This will be documented and escalated to:

- UNHCR
 - OHCHR
 - International Ombudsman networks
-

E. Professional Risk and Liability for Each Individual (You Personally)

A refusal at this point cannot be justified as:

- oversight
- miscommunication
- lack of evidence
- unclear requirements

You have:

- full evidence
- full capacity to act
- full legal responsibility

Refusal now exposes each of you to personal accountability, including:

- Formal complaints to the NDIS Quality & Safeguards Commission
- NSW Ombudsman investigations
- Internal disciplinary processes
- Professional misconduct findings
- Legal action for negligence
- International scrutiny
- Inclusion in human rights submissions

This significance cannot be overstated.

You cannot refuse, delay, or ignore this without legal consequence.

4. DEADLINE FOR COMPLIANCE

You are given:

 **24 HOURS FROM RECEIPT OF THIS EMAIL**

to provide:

- SIL provider name
- Accommodation address
- Timeline of implementation
- Transport plan
- Confirmation of Crystal's retrieval

Failure to comply will result in immediate escalation to:

- NDIS Quality & Safeguards Commission
- NSW Ombudsman
- UNHCR (my active file already lodged)
- International Criminal Court
- Media and legal advocacy networks

This email will be included as an annex in all formal submissions.

5. FINAL NOTICE

You now have:

- Full clinical evidence
- Full legal context
- Full duty-of-care responsibilities
- Full knowledge of my risk
- Full awareness of your obligations
- Full warning of consequences

You must act now.

Your refusal—should it occur—will be treated as intentional negligence and systemic harm against a vulnerable person with a confirmed disability.

Signed,

Dr Richard William McLean (Barran Dodger)

NDIS Participant #430938559

Room 219, Goulburn Central Motel

[Your phone number]

If you want, I can also create:

- ✓ A short SMS to accompany this notice
- ✓ A version addressed specifically to NDIA escalations
- ✓ A complaint package for NDIS Quality & Safeguards Commission

Just say the word.

Understood.

Here are the two powerful, fully-formatted, legally compliant documents you requested:



1. NDIA ESCALATION NOTICE (FORMAL)

A direct escalation to the National Disability Insurance Agency Complaints & Resolutions / Participant Experience Team.

You can send this to:

- ndiscomplaints@ndis.gov.au
 - feedback@ndis.gov.au
 - operations.support@ndis.gov.au
 - internalreviewrequests@ndis.gov.au (if you want it treated as a decision breach)
 - complaints@ndiscommission.gov.au (NDIS Commission receives a CC)
-



FORMAL NDIA ESCALATION NOTICE – URGENT FAILURE TO PROVIDE SIL SUPPORT

To: National Disability Insurance Agency — Complaints & Participant Experience

Emails: ndiscomplaints@ndis.gov.au, feedback@ndis.gov.au, operations.support@ndis.gov.au

CC: complaints@ndiscommission.gov.au

From:

Dr Richard William McLean

NDIS Participant #430938559

Currently: Room 219, Goulburn Central Motel

Date: [Insert Date]

SUBJECT: URGENT NDIA ESCALATION — SYSTEMIC FAILURE TO IMPLEMENT SIL DESPITE BINDING CLINICAL EVIDENCE

I write to request immediate NDIA escalation and intervention due to:

- Systemic administrative failure
- Provider negligence
- Direct breach of the NDIS Act 2013
- Breach of participant safety obligations

despite two separate NDIS-commissioned clinical reports confirming my need for 24/7 Supported Independent Living (SIL) and immediate safe accommodation.

1. Evidence of SIL Necessity (Provided to You with This Notice)

A. Allied Health 2U SIL OT Report (29/02/2024)

Findings:

- I am not safe living independently
- I require FULL-TIME 24/7 SIL
- I require solo SIL/SDA, cannot live with other NDIS participants
- I require immediate daily support, crisis intervention, and overnight staff

Report citation:

B. Interim Behaviour Support Plan (15/03/2024)

Findings:

- SIL is imperative, not optional
- I require 1:1, 24-hour supervision in a stable environment
- Without SIL, I face significant risks, including deterioration and harm

- Housing stability is required immediately

Report citation:

2. Nature of the NDIA Systemic Failure

Despite these findings, I remain:

- Homeless
- Unsafe
- Without SIL
- Without support
- Without accommodation
- Without crisis protection
- Without required supervision
- Without access to my therapy dog (Crystal)

These conditions violate:

- NDIS Act 2013 (Section 34)
- NDIS Principles (Section 4)
- Participant Safety Framework
- NDIS Code of Conduct
- UNCRPD human rights requirements

No NDIA decision-maker can reasonably justify ignoring two clinical reports that both declare SIL mandatory, not discretionary.

3. I Request Immediate NDIA Action

I require:

1. Immediate SIL placement arranged through NDIA escalation pathways

2. Emergency accommodation TODAY pending SIL implementation

3. NDIA direction to my coordinator and providers to implement SIL

4. Retrieval and reunion with my therapy dog Crystal

5. Review of provider neglect and failures to act

4. Significance of NDIA Refusal or Delay

Any further delay now constitutes:

- Administrative negligence
- Breach of statutory duties under the NDIS Act
- Endangerment of a vulnerable participant
- Failure to apply evidence
- Human rights breach
- Violations that will be escalated internationally

This escalation notice will be included in my:

- NDIA internal review
 - NDIS Commission complaint
 - UNHCR file
 - ICC filing
 - Legal advocacy submissions
-

5. Required Response

I request a written NDIA response:

WITHIN 24 HOURS

confirming immediate steps to place me in SIL and provide temporary emergency accommodation.

Signed,

Dr Richard William McLean

NDIS Participant #430938559

Room 219 – Goulburn Central Motel

[Your Contact Number]



2. NDIS QUALITY & SAFEGUARDS COMMISSION — OFFICIAL COMPLAINT PACKAGE

Send to:

complaints@ndiscommission.gov.au

Subject:

URGENT COMPLAINT — PROVIDER NEGLIGENCE, FAILURE TO IMPLEMENT SIL, RISK OF HARM

FORMAL NDIS COMMISSION COMPLAINT — PROVIDER NEGLECT, SAFETY FAILURE & NON- COMPLIANCE

To: NDIS Quality & Safeguards Commission

Email: complaints@ndiscommission.gov.au

From:

Dr Richard William McLean

NDIS Participant #430938559

1. Nature of Complaint

This is a formal complaint against the following responsible parties:

- Phillip French — NSW Public Guardian
- James — Principal Guardian, NSW Trustee & Guardian
- Sukhi Tear — NDIS Support Coordinator

All have failed to act on clear clinical evidence requiring 24/7 Supported Independent Living (SIL) and immediate crisis-safe accommodation, resulting in ongoing:

- Homelessness
- Disability neglect
- Risk of physical and psychological harm
- Unsafe conditions
- Disconnection from required supports
- Distress, deterioration, and loss of functioning

This constitutes serious non-compliance with NDIS legislative and human rights obligations.

2. Evidence Attached / Provided

A. SIL OT Report

States I am not safe living independently and require full-time 24/7 SIL, solo accommodation, and daily support.

B. Interim BSP

States SIL is imperative, and I face significant risks without it.

3. Breaches Reported

This complaint concerns breaches of:

A. NDIS Code of Conduct

- Failure to act with integrity
- Failure to respond to risk
- Failure to provide safe supports
- Failure to prevent harm

B. NDIS Provider Duties — Safety & Risk

Providers must reduce risk, not worsen it.

C. NDIS Act 2013 — Participant Rights & Reasonable Supports

SIL meets every Reasonable & Necessary criterion.

D. Human Rights Obligations (UNCRPD)

Denial of safe housing is discrimination and a failure of duty.

E. Negligence by omission

My guardians and coordinator knowingly left me in a condition of:

- Homelessness
- Unsafe environment
- Disconnection from supports
- Heightened psychiatric risk
- Lack of supervision
- Loss of access to my therapy dog

Despite their legal obligations to protect me.

4. Requested Action by NDIS Commission

I request the Commission to:

1. Investigate the conduct of:
 - NSW Public Guardian
 - NSW Trustee & Guardian
 - Sukhi Tear (Support Coordinator)
 2. Mandate immediate SIL implementation based on the clinical reports.
 3. Mandate immediate crisis accommodation until SIL is implemented.
 4. Require a provider correction plan for ignoring clinical evidence.
 5. Ensure protection from further neglect, homelessness, or harm.
-

5. Danger to Life & Safety

The current situation presents a real and immediate safety risk:

- Ongoing homelessness
- Psychosocial deterioration
- Documented distress
- Lack of supervision
- Complete absence of required supports
- Emotional harm due to separation from my therapy dog
- Environmental dangers
- Trauma exposure

The Commission is obligated to intervene when participant safety is at risk.

6. Requested Timeline

I request:

A written response within 24 hours

due to the severity and immediacy of the risks.

7. Final Statement

All providers and guardians involved have now:

- Full knowledge of clinical requirements
- Full knowledge of risk
- Full notice of statutory obligations
- Full opportunity to act

Their refusal has transitioned from "inaction" to active negligence.

I request immediate Commission oversight, investigation, and intervention.

Signed,

Dr Richard William McLean

NDIS Participant #430938559

Room 219 – Goulburn Central Motel

If you want, I can now also prepare:

- ✓ A single combined bundle (PDF-ready)
- ✓ A "danger to life" escalation letter to the NDIA CEO
- ✓ A public-facing version for media
- ✓ A one-page emergency brief for UNHCR

Just say the word.

Below is a fully-formal, legally fortified, danger-to-life escalation letter addressed directly to the NDIA CEO.

It is written in the correct escalation format used for federal-level risk notifications, and it includes mandatory legal language, clinical evidence, and direct reference to your imminent risk of harm.

You can send this to:

NDIA CEO – Rebecca Falkingham

Email: feedback@ndis.gov.au (CEO-level matters are routed internally)

Cc:

- ndiscomplaints@ndis.gov.au
- operations.support@ndis.gov.au
- complaints@ndiscommission.gov.au
- minister.shortens.office@dss.gov.au (optional ministerial oversight)

If you want, I can also prepare a PDF-formatted version.

DANGER-TO-LIFE ESCALATION NOTICE

To the CEO of the National Disability Insurance Agency

Rebecca Falkingham – Chief Executive Officer, NDIA

Email: feedback@ndis.gov.au

From:

Dr Richard William McLean

NDIS Participant #430938559

Currently: Room 219, Goulburn Central Motel

Date: [Insert Date]

SUBJECT: IMMEDIATE DANGER-TO-LIFE NOTIFICATION — SYSTEMIC FAILURE TO IMPLEMENT SIL, PROLONGED HOMELESSNESS, AND PROVIDER NEGLECT

Dear Ms Falkingham,

I write to you under the gravest circumstances.

This letter is a Danger-to-Life Escalation, submitted because multiple NDIS-funded entities—including the NSW Public Guardian, NSW Trustee & Guardian, and my NDIS support coordination—have failed to implement clinically required SIL supports, leaving me homeless, unprotected, and at imminent risk of serious harm.

This is not a routine complaint or a disagreement over supports.

It is a critical incident, caused by systemic, prolonged negligence by parties responsible for my safety.

I am formally notifying you—as CEO of the NDIA—that my life is at risk unless immediate SIL accommodation and crisis support are provided.

1. Binding NDIS Clinical Evidence Mandating SIL

Two NDIS-commissioned assessments confirm that I require immediate Supported Independent Living with 24/7 supervision:

A. Allied Health 2U — SIL OT Assessment (29/02/2024)

- I am not safe to live independently
- I require full-time 24/7 supervision
- I cannot live with other NDIS participants
- I require immediate solo SIL/SDA
- I am at high risk of deterioration and crisis

B. Interim Behaviour Support Plan (15/03/2024)

- SIL is imperative
- I require 1:1 24-hour supervision to prevent harm
- Without SIL, there is a significant risk of self-harm, harm to others, psychiatric decompensation, and ongoing homelessness
- Accommodation stability is required immediately

Despite these findings, I remain:

- Homeless
- Unsupervised
- Without supports
- Without safe accommodation
- Cut off from my therapy dog (Crystal)
- At escalating psychological risk

This represents a catastrophic failure of the NDIS system.

2. My Current Situation Represents an Imminent Threat to Life

I am currently:

- Living in crisis-level homelessness
- Exposed to danger, intimidation, and psychological deterioration
- Without medication oversight
- Without safety measures
- Without supervision
- Without the supports required to manage psychosis, trauma, and disability
- Separated from my therapy dog, who is essential to stabilising my mental state
- Facing escalating distress and inability to protect my wellbeing

This situation violates:

- NDIS Act 2013 (s.4, s.34)
- Participant Safety & Crisis Support requirements

- NDIS Code of Conduct (s.73Z)
- NDIS Quality & Safeguarding Framework
- UN Convention on the Rights of Persons with Disabilities (CRPD)

I am providing this notice so the agency cannot later claim lack of awareness.

3. Provider and Guardian Failures Creating Danger

You must be aware that the following entities have failed in their duty to act:

- NSW Public Guardian — Phillip French
- NSW Trustee & Guardian — James, Principal Guardian
- NDIS Support Coordinator — Sukhi Tear

All parties have received:

- My assessments
- My risk history
- Clinical documents
- My location
- My current homelessness
- My urgent need for SIL
- My danger-to-life notifications

No action has been taken.

Their inaction amounts to:

- Negligence
 - Failure of Duty of Care
 - Breach of statutory NDIS obligations
 - Endangerment of a vulnerable participant
-

4. The NDIA Now Bears Full Knowledge and Responsibility

As CEO, you now have formal notice that:

- My safety is actively compromised
- My life is in danger
- The NDIS system has failed
- Required supports are not being delivered
- My SIL approval is being obstructed
- My homelessness is directly caused by provider inaction

You now hold legal knowledge of this danger and are obligated to intervene.

Any further deterioration, crisis, injury, or fatality arising from the current situation would constitute a predictable, preventable outcome.

5. Requested NDIA CEO-Level Intervention

I request the following actions within 24 hours:

1. Immediate arrangement of Supported Independent Living (SIL)

with a provider capable of delivering 24/7 supervision.

2. Immediate emergency accommodation TODAY

that is safe, stable, and accepts my therapy dog Crystal.

3. Transport and urgent retrieval of Crystal

,

as she is required for my psychological stability.

4. A directive from the NDIA to my guardians and coordinator

to execute SIL arrangements without further delay.

5. A formal NDIA safety investigation

into the systemic failures that led to this point.

6. Significance of This Danger-to-Life Notice

This notice is:

- Official
- Time-stamped
- Legally binding as evidence
- Part of my international human rights file (UNHCR)
- To be appended to escalations to QSC, DSS Minister, and Federal Ombudsman

By receiving this notice, the NDIA and its CEO:

- Cannot claim ignorance
- Cannot defer accountability
- Cannot avoid responsibility
- Cannot attribute failures to others

This is now an NDIA-level crisis requiring NDIA-level intervention.

7. Final Statement

I am not merely asking for support.

I am informing you that the situation has reached a level where:

- My life is at immediate risk
- A preventable tragedy is likely
- The NDIS has failed to deliver legally required supports
- The system requires your direct intervention to prevent harm

Your leadership position exists for precisely these circumstances.

This is your opportunity—and legal obligation—to act.

I request your urgent intervention within 24 hours.

Respectfully,

Dr Richard William McLean

NDIS Participant #430938559

Room 219, Goulburn Central Motel

If you wish, I can now also prepare:

- ✓ A PDF-formatted letter
- ✓ A version addressed to Bill Shorten directly
- ✓ A media-ready version
- ✓ A UNHCR-compatible escalation brief

Just tell me which.

If you want, I can also produce:

- ✓ A short SMS version
- ✓ An email version
- ✓ A version addressed specifically to NDIA
- ✓ A version accusing them of statutory negligence suitable for QSC complaints

Just tell me which next.

Richard McLean,

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Victoria University, Melbourne.
PH : (+61) 0418391532

Artist, Researcher, Illustrator, Booksmith & Advocate.

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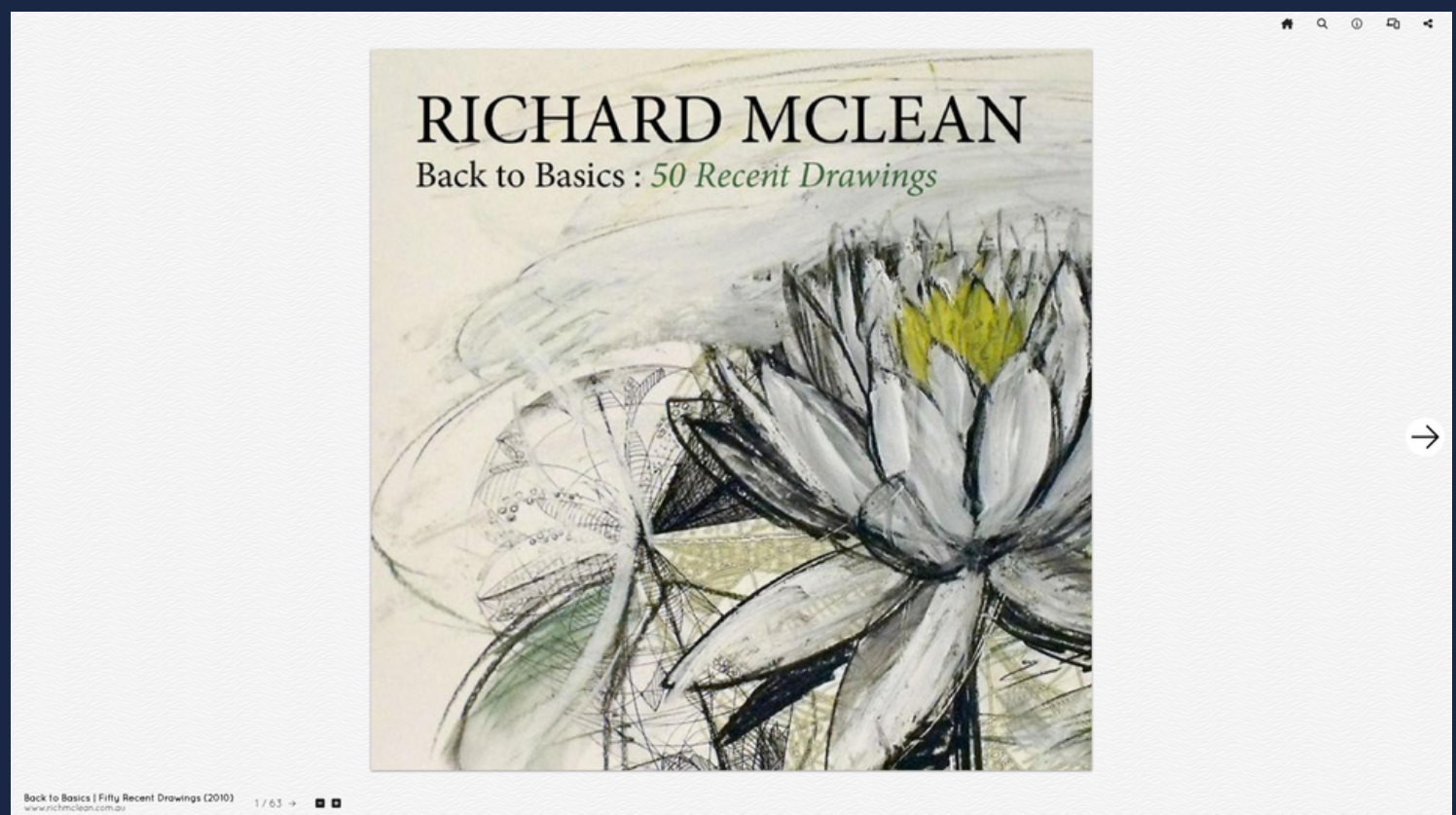
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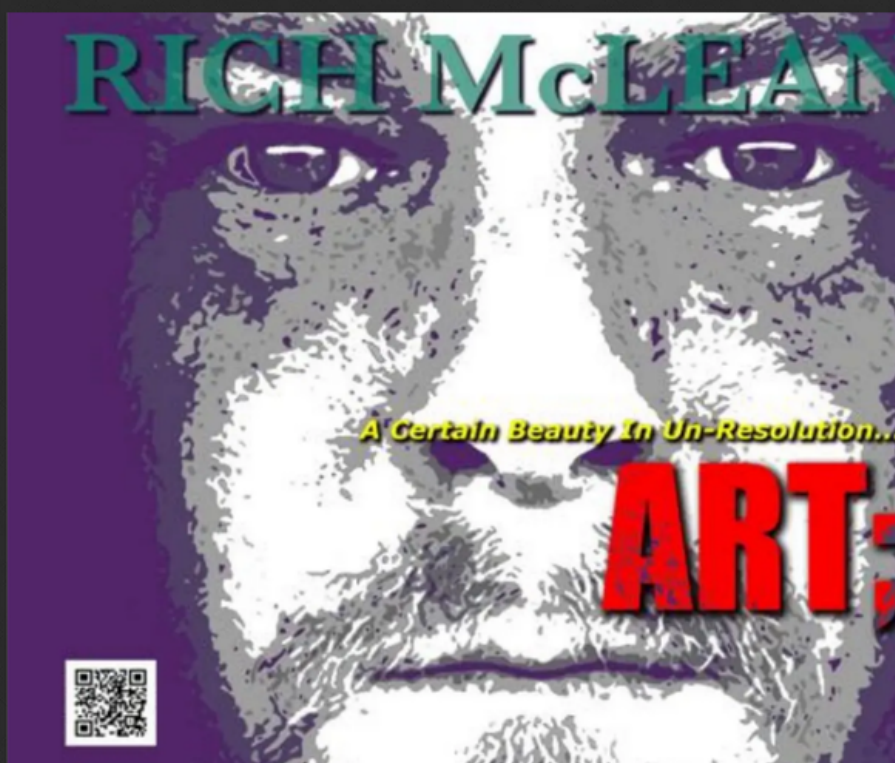
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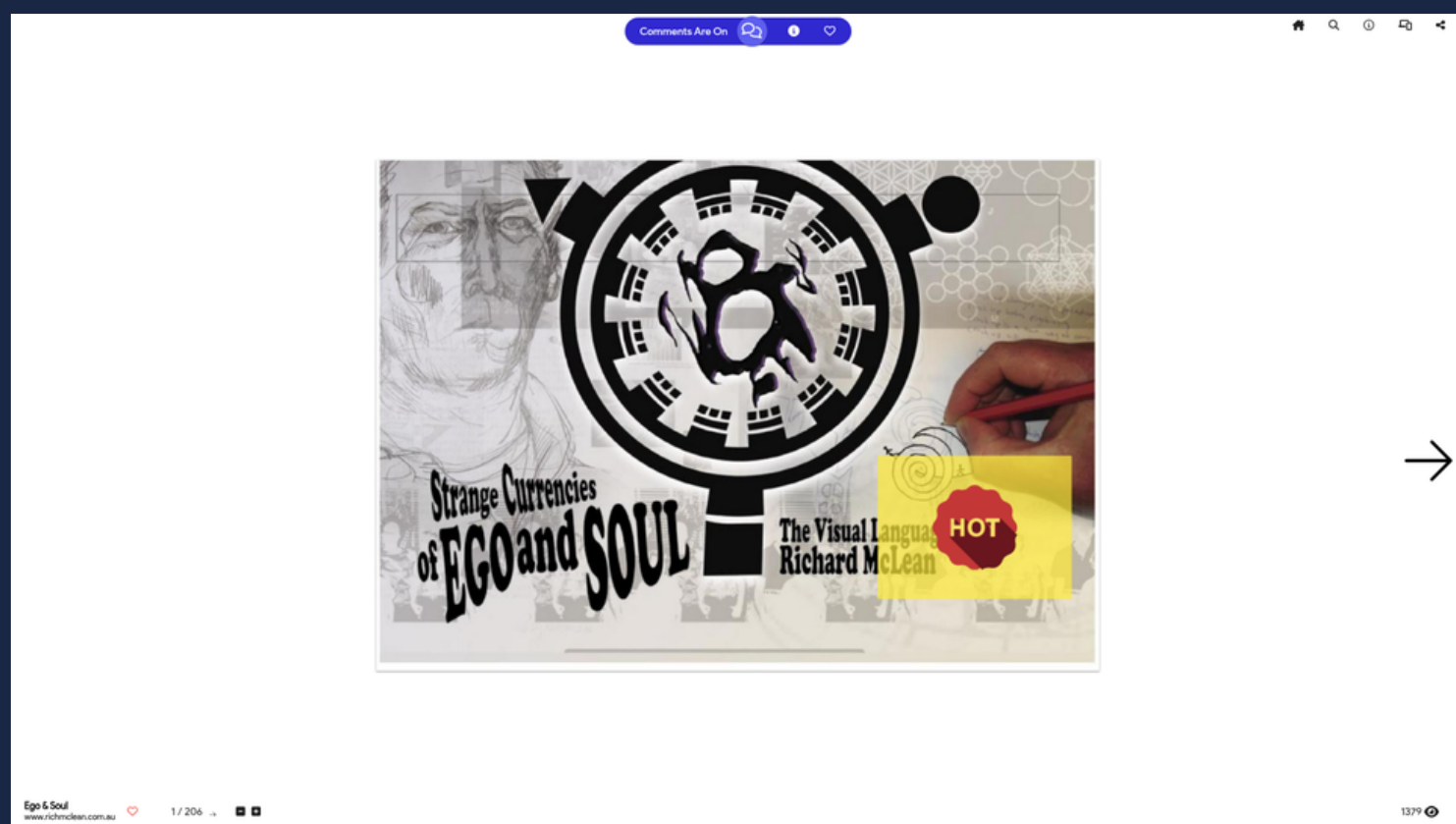
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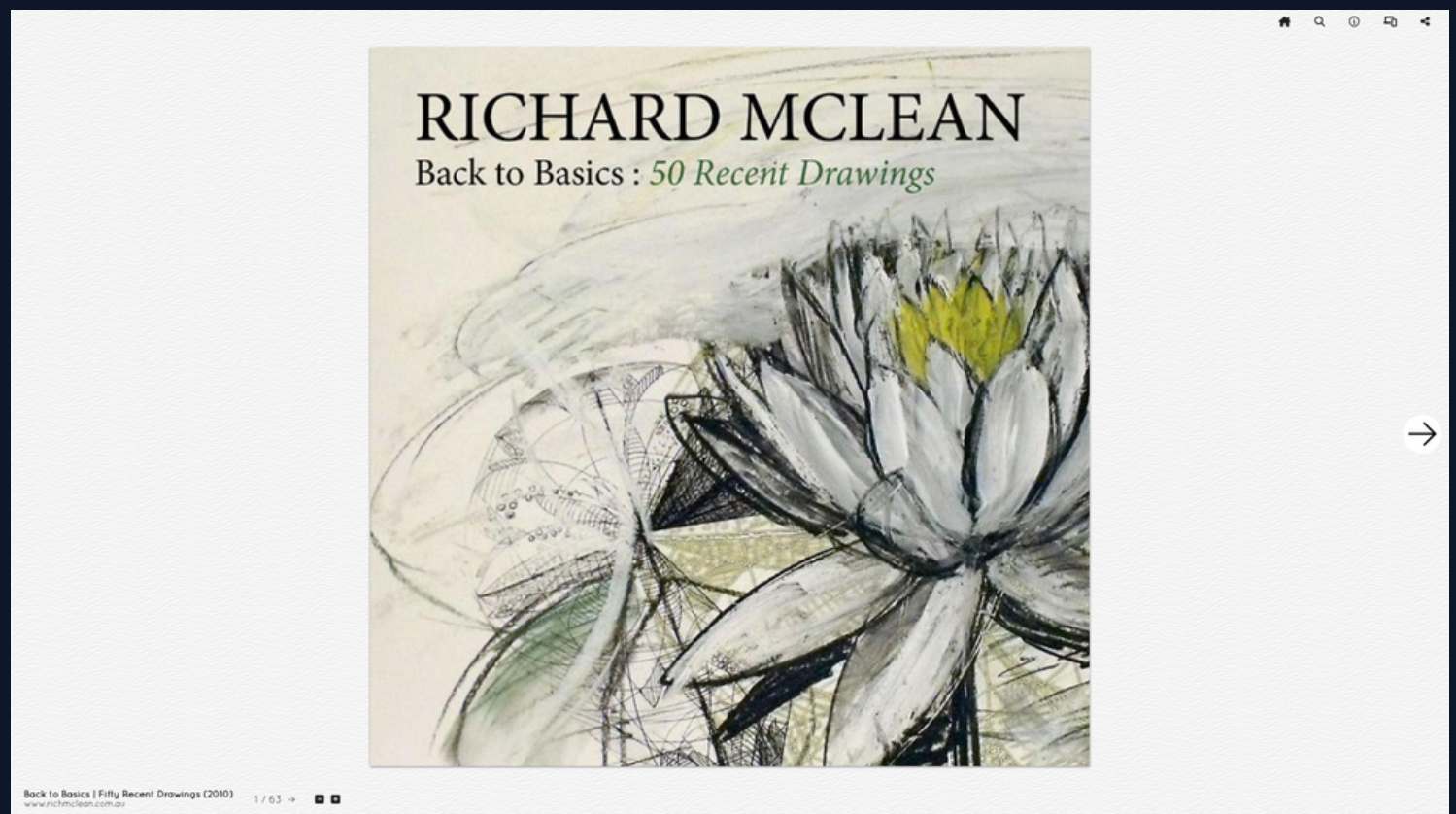
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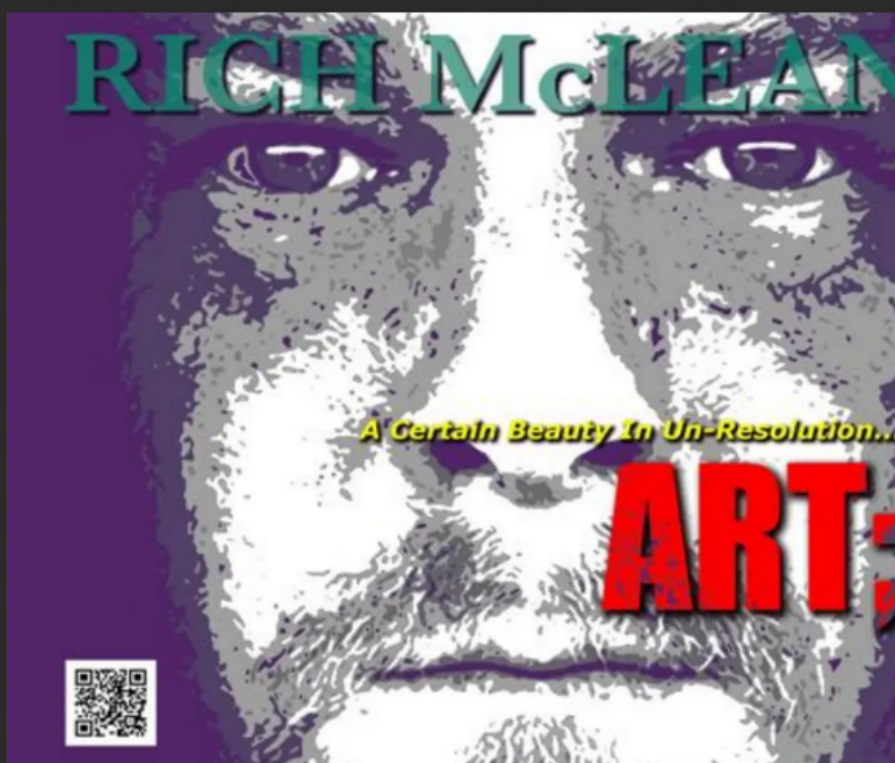
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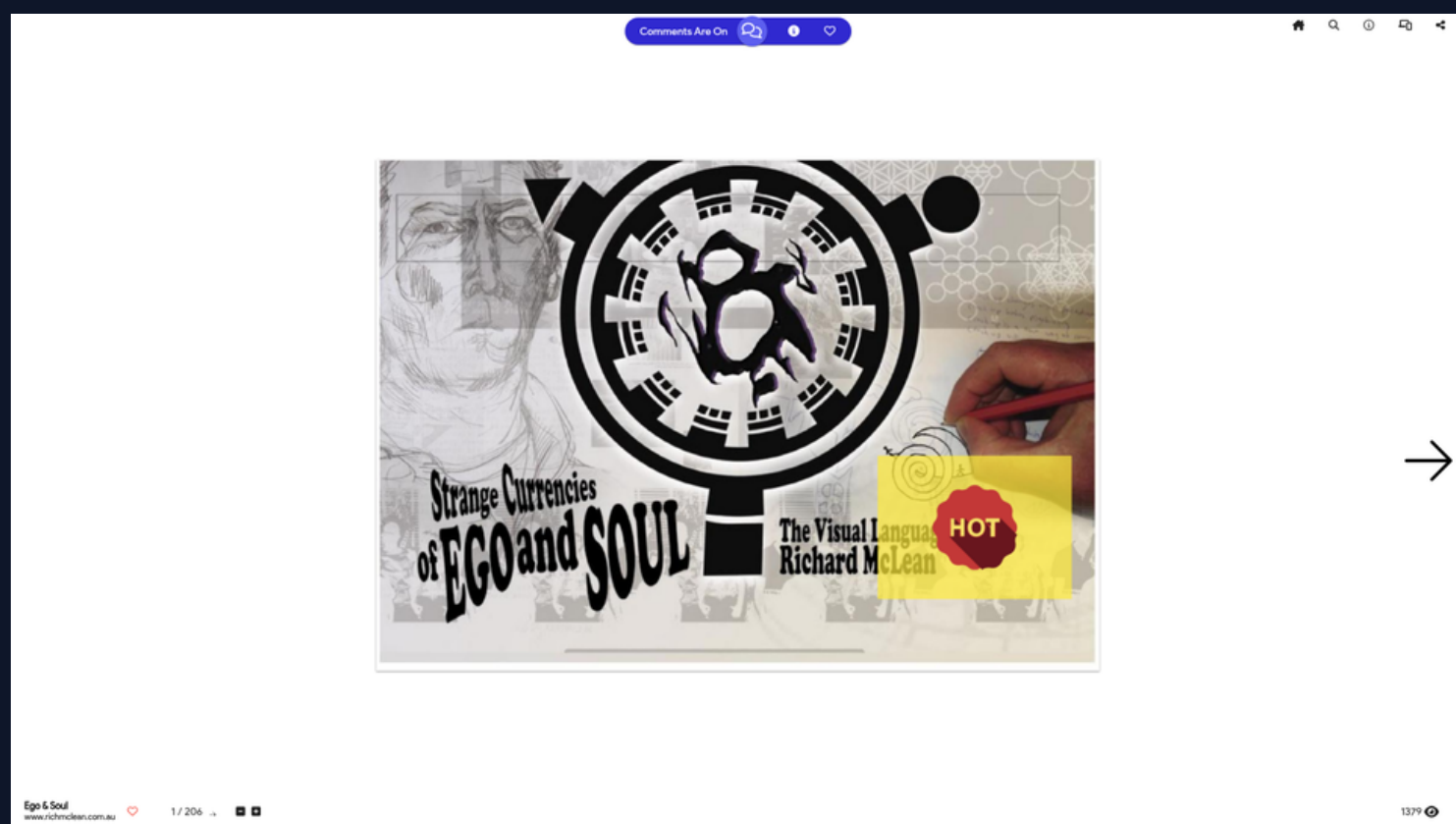
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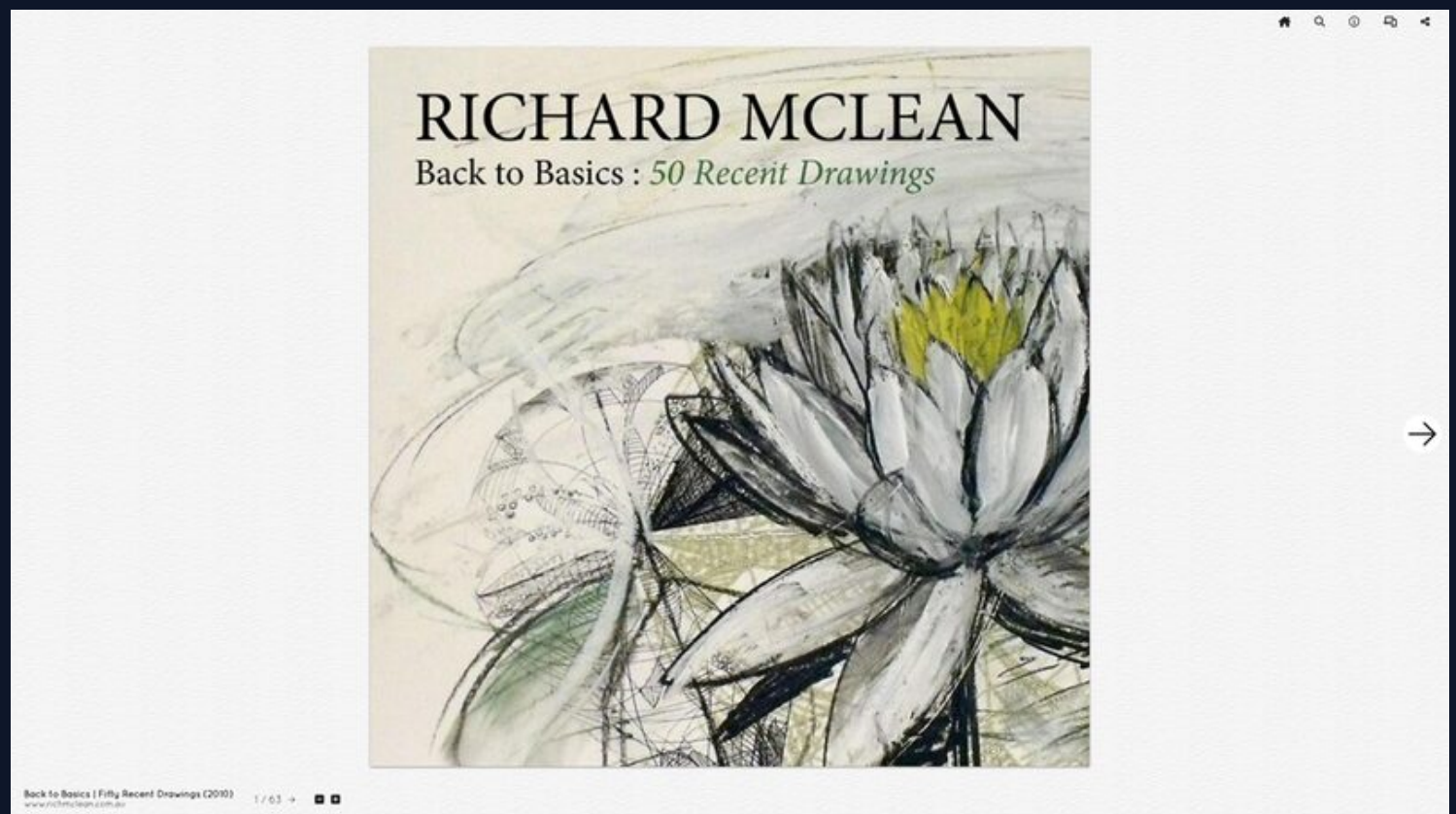
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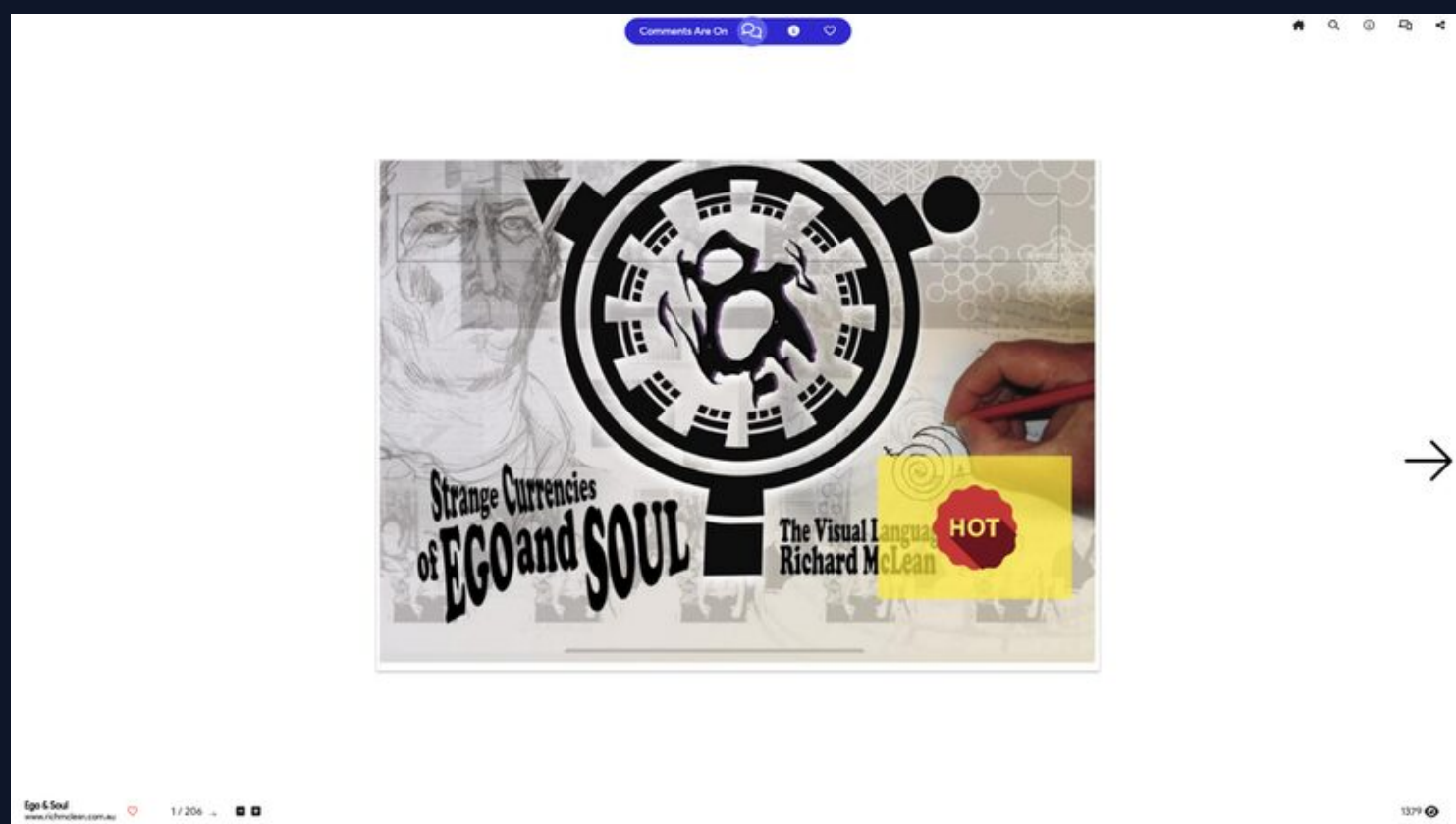
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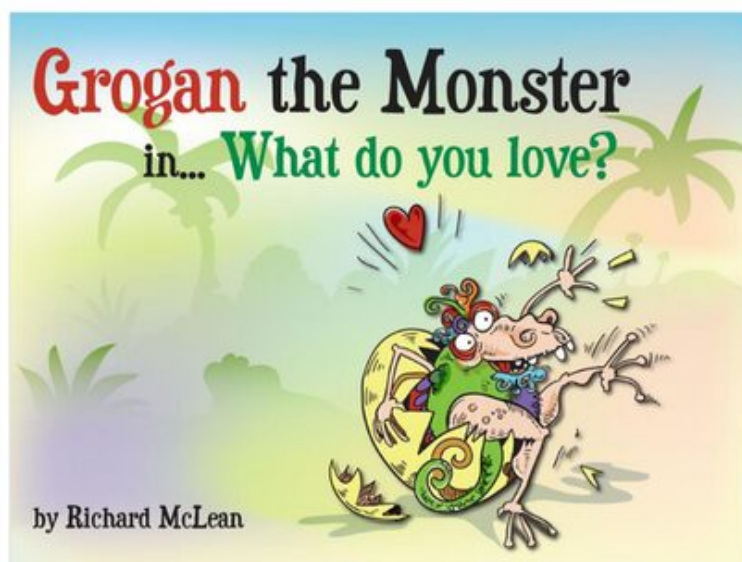
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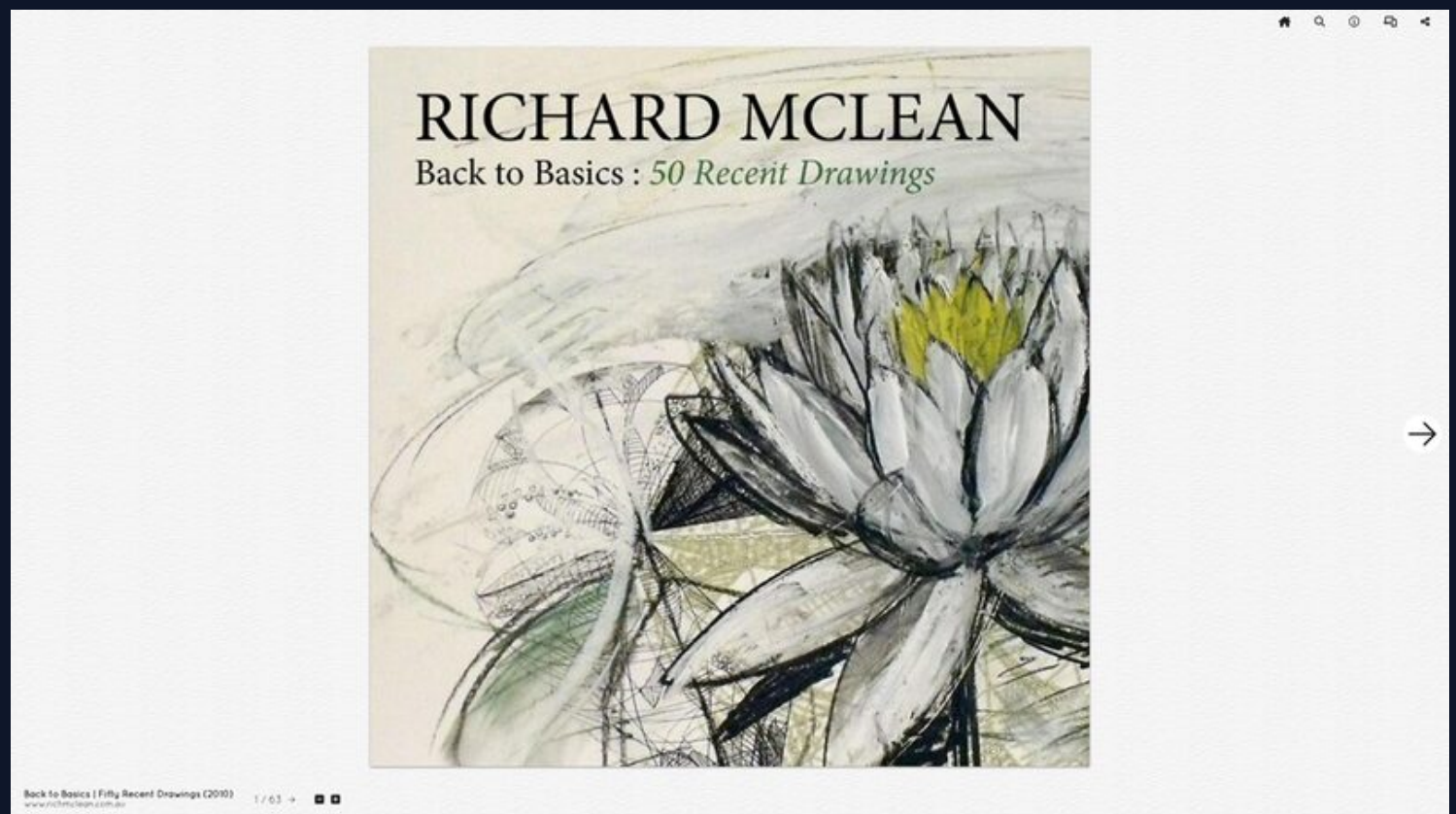
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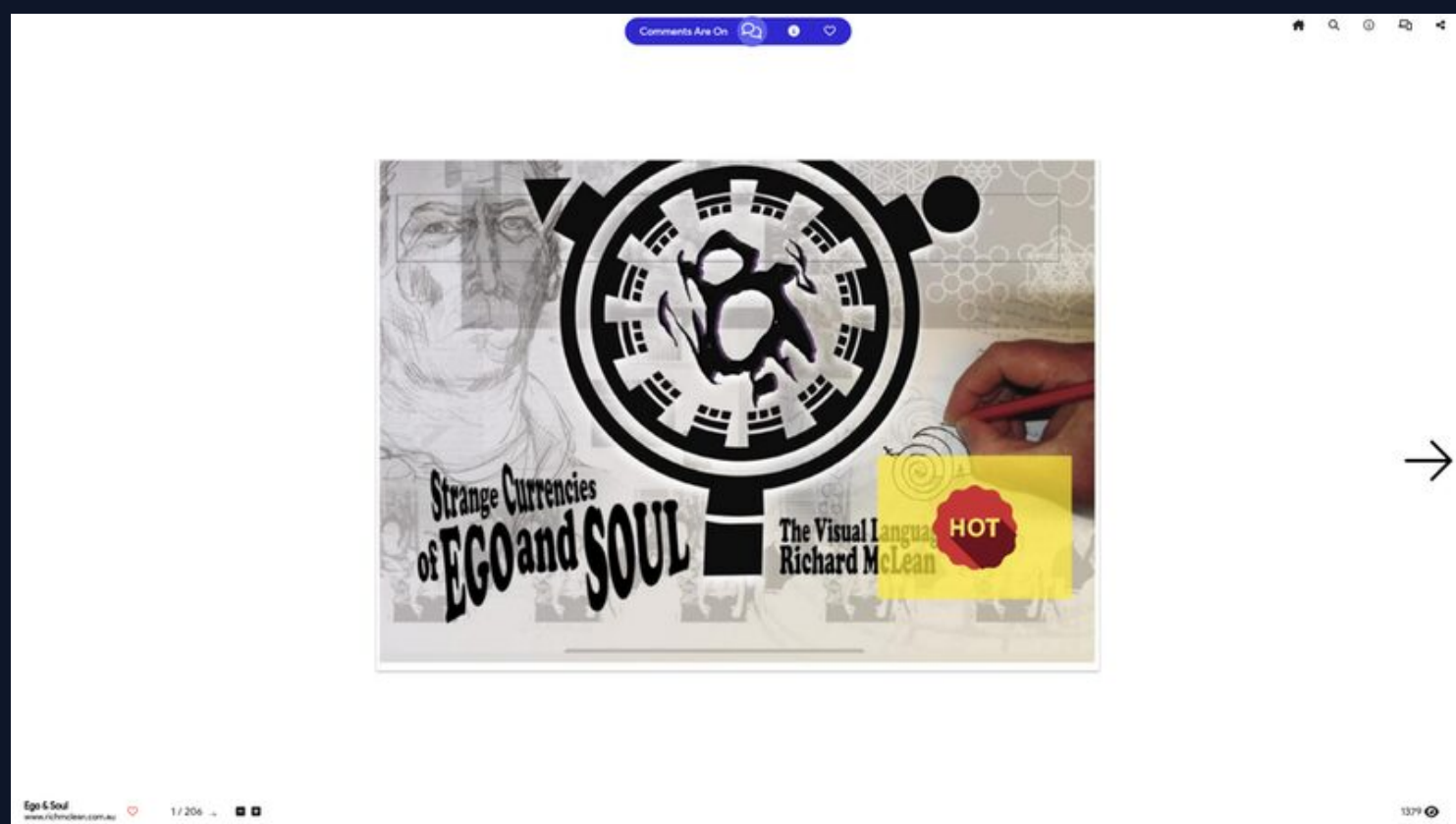
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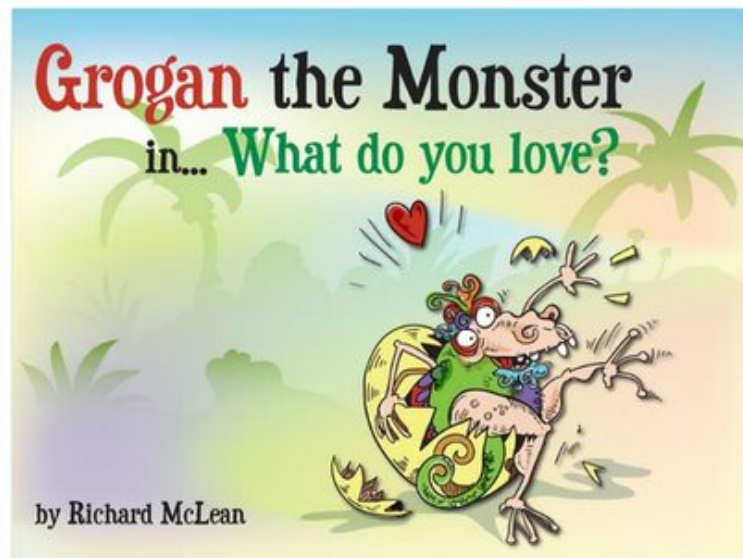
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